

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Theo Kaufman	Team: Squad #06	CCRB Case #: 202302373	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 07/18/2022 5:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/18/2024	Precinct: 05		
Date/Time CV Reported Wed, 03/15/2023 3:18 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/15/2023 3:18 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Chiho Tong	10292	951341	005 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Wayne Ellis	20742	932602	005 PCT
2. PO Casey Kearney	24201	969847	005 PCT
3. SGT Khary Hoyle	00604	950601	005 PCT
4. PO Mao Zhong	13301	943986	005 PCT
5. PO Eric Chan	26477	948193	005 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Chiho Tong	Abuse: Police Officer Chiho Tong arrested § 87(2)(b) unlawfully.	A . Unfounded
B . PO Chiho Tong	Abuse: Police Officer Chiho Tong provided a false official statement against § 87(2)(b)	B . Unfounded

Case Summary

On March 15, 2023, § 87(2)(b) filed this complaint with the CCRB via phone.

On July 18, 2022, at approximately 5:30am, PO Chiho Tong, PO Eric Chan, PO Mao Zhong, and PO Casey Kearney of the 5th Precinct responded to § 87(2)(b) in Manhattan in regard to a call for a violation of an order of protection. Upon responding to the job, PO Tong recognized the address as related to a wanted poster that was posted in the stationhouse. On scene, PO Tong spoke with the caller, § 87(2)(b) who told him that she had an order of protection against her roommate, § 87(2)(b) and that § 87(2)(b) had locked her out of the apartment multiple times. § 87(2)(b) opened the door to the apartment, and PO Tong recognized her from the wanted poster and arrested her. The wanted poster was later determined to be no longer valid (**Allegation A: Abuse of Authority: Unfounded**). § 87(2)(b) was taken to the 5th Precinct Stationhouse and processed. PO Tong allegedly falsely stated on the arrest report that § 87(2)(b) locked the apartment door (**Allegation B: Abuse of Authority: Unfounded**).

§ 87(2)(b) was arrested for § 87(2)(a) 160.50 [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

BWC footage was obtained (**BR 04**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Chiho Tong arrested § 87(2)(b) unlawfully.

EVENT § 87(2)(b) notes female caller, § 87(2)(b) was locked out of her apartment by § 87(2)(b) and has an order of protection against § 87(2)(b) (**BR 01**).

At timestamp 00:59 of PO Tong's BWC, he speaks with § 87(2)(b)'s roommate, § 87(2)(b). § 87(2)(b) says that § 87(2)(b) locked the door for the second day in a row. At 01:37, PO Tong briefly speaks with PO Zhong about a poster. PO Tong and other officers follow § 87(2)(b) into the building and get § 87(2)(b)'s attention by knocking on her window. At timestamp 03:14, § 87(2)(b) opens the door and asks officers why they are there. At 03:40, PO Tong tells § 87(2)(b) that she locked the door again, and § 87(2)(b) tells him that she is entitled to have two locks on her door. At timestamp 03:56, PO Tong tells § 87(2)(b) that she is wanted. PO Chan enters the apartment at timestamp 04:00, and at 04:08, PO Tong asks § 87(2)(b) to put her hands behind her back, and the other officer asks her to put her phone down. An additional officer tells her that she is under arrest. § 87(2)(b) asks why she is under arrest. At 04:41, PO Tong tells § 87(2)(b) that she is wanted in regard to her order of protection, from "last time". § 87(2)(b) states that this is not true. At 04:50, § 87(2)(b) says that the OOP (Order of Protection) is a limited order which states that § 87(2)(b) is allowed to live at the apartment. At 04:55, PO Tong says the arrest is in regard to a previous violation of the order of protection. § 87(2)(b) asks him what he means, and he just asks her where her shoes are. Officers walk § 87(2)(b) downstairs to get her ID from her room. 07:53, PO Tong tells § 87(2)(b) that she is on a wanted poster. At 08:34, An officer shows PO Tong a picture of a wanted poster with § 87(2)(b)'s face on his phone, and asks him "this one?" The picture is too small to § 87(2)(b) any of the details. At 08:38, An officer shows the wanted poster to § 87(2)(b) who states that this is false, and she did not violate the order of protection. The officer tells § 87(2)(b) that the detective squad is going to talk to her, and they will figure it out. PO Tong then escorts § 87(2)(b) out of her apartment, and out of the building (**BR 04**).

§ 87(2)(b) testified that at approximately 5:30am on July 18, 2022, officers knocked on her window,

prompting her to go to the door. PO Tong and other officers asked about the lock on the door and asked to enter the apartment. § 87(2)(b) allowed officers to enter the apartment. PO Tong entered the apartment and told § 87(2)(b) that they were there to arrest her and that there was a wanted poster for her arrest. PO Tong handcuffed § 87(2)(b) and she was arrested and taken to the 5th Precinct Stationhouse. § 87(2)(b) believed that PO Tong knew that it was unlawful to arrest § 87(2)(b) and that he falsely documented the circumstances of the arrest on the arrest report. **(BR 05).**

§ 87(2)(g)

PO Tong testified that on July 18, 2022, he and his partner, PO Kearney, received a 911 call regarding a violation of an order of protection at § 87(2)(b). PO Tong recognized the location by name, and recalled that there was a wanted poster in the stationhouse for § 87(2)(b) who resided at that location. PO Tong and PO Kearney arrived on scene, followed by PO Chen and PO Zhong. PO Tong spoke with the 911 caller, § 87(2)(b) who explained that § 87(2)(b) locked her out of the apartment again. PO Tong was aware of this being a repeat occurrence, as there have been multiple 911 calls about § 87(2)(b) locking § 87(2)(b) out of the apartment.

§ 87(2)(g)

Officers got § 87(2)(b)'s attention by knocking on her window. § 87(2)(b) opened the door to the apartment, and PO Tong identified § 87(2)(b) confirmed that she was the subject of the wanted poster, and arrested her. At the stationhouse, PO Tong called the 5th Precinct detective squad to confirm the validity of the arrest. The detective that he spoke to told him that the wanted poster was no longer valid and had expired. PO Tong processed the arrest and § 87(2)(b) was charged with criminal contempt for violating her order of protection on July 18, 2022, due to her locking her roommate out of the house, causing annoyance and alarm, which constitutes harassment **(BR 06).**

A copy of the order of protection served to § 87(2)(b) on June 18, 2023, was provided by § 87(2)(b) and it states that § 87(2)(b) must refrain from harassing, intimidating, threatening, or otherwise interfering with § 87(2)(b) **(BR 07).**

As of April 4, 2023, there was an active Suspect Only I-card out for § 87(2)(b). No probable cause to arrest **(BR 02).** The 5th Precinct detective squad did not provide a copy of the wanted poster, and further stated that wanted flyer was never prepared **(BR 03).**

A person is guilty of harassment in the second degree when, with intent to harass, annoy or alarm another person, she engages in a course of conduct or repeatedly commits acts which alarm or seriously annoy such other person, and which serve no legitimate purpose. NYS Penal Law 240.26 **(BR 08).** A person is guilty of criminal contempt in the first degree when in violation of a duly served order of protection, she commits the crime of criminal contempt in the second degree as defined in subdivision three of section 215.50 of this article by violating that part of a duly served order of protection. NYS Penal Law 215.51 **(BR 09).**

§ 87(2)(g)

§ 87(2)(g)

. It is therefore, recommended that **allegation A** be closed as **Unfounded**.

Allegation (B) Abuse of Authority: Police Officer Chiho Tong provided a false official statement against § 87(2)(b)

BWC footage does not show PO Tong filling any paperwork related to this incident (BR 04).

§ 87(2)(b) testified that the arrest paperwork prepared by PO Tong falsely stated that § 87(2)(b) allegedly changed the locks to § 87(2)(b) (BR 05).

§ 87(2)(g)

§ 87(2)(a) 160.50

§ 87(2)(g)

it is therefore recommended that **allegation B** be closed as **Unfounded**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three additional CCRB complaints and has been named as a victim in 11 additional allegations (**BR 11**):
 - § 87(2)(b), § 87(2)(g)
- PO Tong has been a member of service for 12 years and has been a subject in one additional CCRB complaints and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of July 10, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR 12**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Squad: 6

Investigator: Theo Kaufman Investigator Theo Kaufman 9/6/2023
Signature Print Title & Name Date

Squad Leader: Jessica Peña IM Jessica Peña 9/7/2023
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date